

BEFORE THE STATE BOARDS OF ADDICTION COUNSELOR EXAMINERS AND PROFESSIONAL
COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2019-7554, 2019-7553, 2020-580 and 2020-581

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
ADDICTION COUNSELING IN THE STATE OF COLORADO OF SEIJI WALLIS, LICENSE NO.
ACD 928,

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF SEIJI
WALLIS, LICENSE NO. LPC 14166,

Respondent.

IT IS HEREBY STIPULATED by and between the State Boards of Addiction
Counselor Examiners and Professional Counselor Examiners ("Boards") and Seiji Wallis
("Respondent") as follows:

1. The Boards have jurisdiction over the person of Respondent and the
subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as an Addiction Counselor ("ACD")
in the State of Colorado on November 9, 2017, having been issued license number ACD
928, and is currently so licensed.
3. Respondent was licensed to practice as a Licensed Professional Counselor
("LPC") in the State of Colorado on November 9, 2017, having been issued license
number LPC 14166, and is currently so licensed.
4. This Order is a full and final resolution of case numbers 2019-7554, 2019-
7553, 2020-580, 2020-581. This Order does not resolve any other cases, complaints, or
matters, known or unknown to the Boards or Respondent, as of the effective date of
this Order.

5. Based on its review of case numbers 2019-7554, 2019-7553 and 2020-580, the Board alleges that Respondent violated section 12-245-224(1)(g) and (r), C.R.S. Respondent denies the Board's allegations.

6. Although Respondent denies the Board's allegations, Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated section 12-245-224(1)(g) and (r), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which a therapeutic relationship exists;

RELINQUISHMENT

7. Respondent hereby permanently relinquishes his licenses and the right to practice as an Addiction Counselor and Licensed Professional Counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees not to reapply for licensure as an Addiction Counselor and Licensed Professional Counselor in the State of Colorado at any time in the future.

8. Following relinquishment of his license, Respondent shall not perform any act requiring a license to practice.

9. Respondent also agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

12. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representative.

13. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Boards order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

14. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

15. Respondent shall obey all state and federal laws while this Order is in effect.

16. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



SEIJI WALLIS
LICENSE No. ACD-928

APPROVED AS TO FORM
FOR RESPONDENT



Robert A Lees
5290 DTC Pkwy
Ste 150
Greenwood Village, CO 80111-2764

AGREED TO AND ORDERED BY:

STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS



WENDY ANDERSON
Interim Program Director

Effective this ^{29th} day of June, 2020.